

STATE OF NEW YORK

4351--A

2025-2026 Regular Sessions

IN SENATE

February 4, 2025

Introduced by Sens. CLEARE, ROLISON -- read twice and ordered printed, and when printed to be committed to the Committee on Aging -- reported favorably from said committee and committed to the Committee on Finance -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the elder law, in relation to publishing a guide to actions when someone close dies

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The elder law is amended by adding a new section 226 to
2 read as follows:

3 § 226. Guide to actions when someone close dies. 1. The office shall
4 publish a "Guide to Actions When Someone Close Dies". This guide shall
5 be made publicly available on the official website of the office and the
6 office may produce a paper format within one year of the effective date
7 of this section.

8 2. The guide shall provide information in at least the following
9 domains:

10 (a) Economic security, including but not limited to, pensions, social
11 security, life insurance, health insurance, death benefits as well as
12 tax implications of a death.

13 (b) Legal, including how to access death certificates, wills, trust
14 documents and other legal information needed to plan for the future.

15 (c) Mental health assistance, including information on the grieving
16 process, triggers and symptoms associated with grief, effective coping
17 strategies, the impact on family dynamics in relation to the loss of
18 someone close, and other mental health concerns correlated with grief.

19 (d) Disposition of remains including funeral and service arrangements
20 and burials. This information shall include average costs by region and
21 refer to the resources provided by the department of health's bureau of
22 funeral directing.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (e) Other information as determined by the office in consultation with
2 the special advisory committee established pursuant to this section.

3 3. The director shall establish a special advisory committee to help
4 fulfill the requirements of this section. The committee shall be tempo-
5 rary and dissolve thirty days after the guide is posted and distributed.
6 The members of the special advisory committee shall receive no compen-
7 sation for their services but shall be reimbursed for actual and neces-
8 sary expenses incurred in the performance of their duties, to the extent
9 funds are appropriated for such purpose. The committee shall contain
10 representatives from the following professions as well as any state
11 agency representatives that are needed at the discretion of the direc-
12 tor:

13 (a) Funeral directors;

14 (b) Cemeteries;

15 (c) Mental health professionals with specific knowledge of grief coun-
16 seling;

17 (d) Attorneys specialized in estate planning, including the New York
18 state bar association; and

19 (e) Clergy.

20 § 2. This act shall take effect immediately.